

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Irfan Saadat Khan
Justice Naeem Akhter Afghan
Justice Malik Shahzad Ahmad Khan

JP No.11/2025

(Against the judgment dated 28.01.2025 passed by Lahore High Court, Lahore in Crl. A No.24453/2021 and MR No.74/2021)

Ibrar ...Petitioner(s)

Versus

The State ...Respondent(s)

For the Petitioner(s) : Mr. Sagheer Ahmed Qadri, ASC

State : Rai Akhter Hussain, Additional
Prosecutor General (**PG**) Punjab

Complainant : In person

Date of Hearing : 26.11.2025

ORDER

Naeem Akhter Afghan, J: The petitioner was convicted under section 302(b) of Pakistan Penal Code (**PPC**) in case/FIR No.77/2020 dated 18.01.2020 Police Station (**PS**) Aroop, District Gujranwala by the learned Additional Sessions Judge, Gujranwala (**the trial court**) vide judgment dated 25.03.2021 and was sentenced to death for committing murder of his wife Mst. Zeenat Bibi in the house of her parents, to pay compensation of Rs.200000/- to the legal heirs of the deceased under section 544-A of the Code of Criminal Procedure (**Cr.P.C**) and in default to further suffer 06 months Simple Imprisonment (**S.I**). He was also convicted under section 324 PPC and awarded Rigorous Imprisonment (**R.I**) for 07 years for committing murderous assault upon the complainant Asghar Ali (father of the deceased) and in default to further suffer 06 months S.I.

2. The petitioner challenged his conviction and sentence by filing criminal appeal before Lahore High Court (**High Court**). Murder Reference No.74/2021 was also

forwarded by the trial court to the High Court for confirmation or otherwise of the death sentence of petitioner.

3. While answering murder reference in affirmative, the appeal preferred by the petitioner was dismissed by the High Court vide impugned judgment dated 28.01.2025.

4. After hearing learned counsel for the petitioner, the complainant and learned Additional PG, we have perused the available record. It is the case of the prosecution that the petitioner was married with the deceased; on 17.01.2020 at about 08.45 AM when the complainant Asghar Ali (PW-1) alongwith his brother Muhammad Ishaque (PW-3), his wives Rukhsana and Bilqees (not produced at the trial), and his daughter Mst. Zeenat Bibi were present in their house in Kot-Ishaq, the petitioner entered in the house duly armed with .30 bore pistol; on entering the house the petitioner made *lalkara* that he will teach them lesson for not allowing his wife Mst. Zeenat Bibi to join him as his wife; the petitioner made straight fire upon Mst. Zeenat Bibi which hit on her head due to which she became injured and fell on the ground; when the complainant moved forward to rescue her, the petitioner made straight fire upon him; while touching his right ear, the bullet hit on his right shoulder due to which he also fell on the ground; the petitioner fled; he and her daughter were taken to civil hospital by his brother and the inhabitants of *Mohallah*; her daughter was referred to General Hospital Lahore. On 24.02.2020 the injured Mst. Zeenat Bibi succumbed to the injuries.

5. With regard to motive of the occurrence, it was stated by the complainant that there was matrimonial dispute between the petitioner and his daughter due to which the petitioner has committed murder of his daughter and made murderous assault upon him.

6. On reappraisal of the evidence available on record we have no hesitation to conclude that the prosecution has proved the charge against the petitioner

under section 302(b) PPC through the unshaken and confidence inspiring testimony of injured witness/complainant Asghar Ali (PW-2) duly supported by statement of his brother Muhammad Ishaque (PW-3) and corroborated by medico legal evidence i.e. post-mortem report of the deceased and the medico legal certificate of the injured.

7. With regard to quantum of the sentence, it is observed that each case has to be judged upon its own facts and circumstances. According to settled principles of law, a single mitigating circumstance, available in the particular case, would be sufficient to put a Judge on guard for not awarding the penalty of death but imprisonment for life.¹ In the instant case, according to the prosecution, the petitioner was arrested on 29.01.2020 whereafter he led to recovery of .30 bore pistol with two live cartridges on 02.02.2020 which was buried under a tree in the graveyard but no independent witness has attested the alleged recovery.

Moreover 04 crime empties, allegedly recovered from the place of occurrence on 18.01.2020, were sent to the Firearm Expert for analysis on 25.02.2020 i.e. after the arrest of the petitioner and after unexplained delay of 37 days and in this regard no convincing/cogent reason has been assigned by the Investigating Officer. Though the crime empties matched with the pistol but since the same were dispatched to the expert on a date subsequent to the arrest of the petitioner, therefore this piece of evidence has lost its significance/evidentiary value.²

8. Due to the above circumstances, the recovery of pistol and positive report of the Firearm Expert are held inconsequential and of no avail to the prosecution.

¹ Liaqat Hussain v. The State (2024 SCMR 1600)

² Asad Rehmat v. The State (2019 SCMR 1156),
Nawab Siraj Ali v. The State (2023 SCMR 16),
Sarfray v. The State (2023 SCMR 670), and
Muhammad Amin v. The State (2019 SCMR 2057)

9. The above are the reasons of our short order of even date (reproduced herein below) whereby the petitioner was awarded lesser sentence while considering the above as mitigating circumstances:³

“For reasons to be recorded later, this petition is converted into an appeal and it is partly allowed. While maintaining the conviction of the petitioner under section 302(b) PPC, the sentence of death is converted into imprisonment for life. The amount of compensation and the sentence in default thereof, as ordered by the trial court and upheld by the High Court, is maintained. The conviction and sentence awarded to the petitioner under section 324 PPC alongwith payment of fine and the sentence in default thereof, as ordered by the trial court and upheld by the High Court, are also upheld. The substantive sentences of imprisonment shall run concurrently. Benefit of section 382-B Cr.PC is also extended in favour of the petitioner.”

Judge

Judge

Judge

Islamabad
26.11.2025
APPROVED FOR REPORTING
Rashid+Muhammad Zain Alam LC

³ Sohail Akhtar v. The State (2024 SCMR 67)